The Executive Engineer, Nandur ... vs Mr. Dashrath Umaji Gade Died Thr. Lrs. ... on 13 December, 2022

Author: R. I. Chagla

Bench: R. I. Chagla

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
     APPELLATE SIDE CIVIL JURISDICTION

      CIVIL APPLICATION IN FA NO. 1639 OF 2019
                         In
       FIRST APPEAL STAMP NO. 32652 OF 2018

The Executive Engineer, Nandur Madhameshwar....APPLICANT
Project
           V/S
Mr. Subhash Tabaji Gade And Ors.        ....RESPONDENT
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WITH INTERIM APPLICATION NO. 30138 OF 2022 In First Appeal STAMP NO. 31817 OF 2018 Mr. Sudhakar Popat Gade Died Through His ....PETITIONER Legal Heirs 1.1 Smt. Gayatri Sudhakar Gade And Ors.

V/S The Executive Engineer, Nandurmadhameshwar ....RESPONDENT Project WITH INTERIM APPLICATION NO. 30118 OF 2022 In First Appeal STAMP NO. 32652 OF 2018 Subhash Tabaji Gade ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project, Nashik And Anr.

WITH INTERIM APPLICATION NO. 30120 OF 2022 In First Appeal STAMP NO. 32658 OF 2018 Mr. Sanjiv Trambak Vaghchaure / Tambe ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project WITH INTERIM APPLICATION NO. 30121 OF 2022 In First Appeal STAMP NO. 32676 OF 2018 Saraswati Baburao Gade ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project, Nashik And Anr.

WITH INTERIM APPLICATION NO. 30123 OF 2022 In First Appeal STAMP NO. 32619 OF 2018 Mr. Balasaheb Baburao Gade And Anr. ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project WITH INTERIM APPLICATION NO. 30127 OF 2022 In First Appeal STAMP NO. 32670 OF 2018 Chandrabhan Sukhdeo Gade ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project And Anr WITH INTERIM APPLICATION NO. 30124 OF 2022 In First Appeal STAMP NO. 32631 OF 2018 Mr. Balkrishna Popat Gade And Anr. ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project WITH INTERIM APPLICATION NO. 30125 OF 2022 In First Appeal STAMP NO. 32616 OF 2018 Dhondi Ganpati Gade ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project, Nashik And Anr.

WITH INTERIM APPLICATION NO. 30126 OF 2022 In First Appeal STAMP NO. 32634 OF 2018 Kusumbai Gangadhar Shinde ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project, Nashik And Anr.

WITH INTERIM APPLICATION NO. 30136 OF 2022 In First Appeal STAMP NO. 32625 OF 2018 Dhondiram Tabaji Gade ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project And Anr WITH INTERIM APPLICATION NO. 30119 OF 2022 In First Appeal STAMP NO. 32643 OF 2018 Mr. Shivaji Shrihari Gade And Anr. ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project And Anr WITH INTERIM APPLICATION NO. 30122 OF 2022 In First Appeal STAMP NO. 32667 OF 2018 Deoram Popat Gade ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project, Nashik And Anr.

WITH INTERIM APPLICATION NO. 30134 OF 2022 In First Appeal STAMP NO. 32673 OF 2018 Ratan Namdeo Sonawane And Anr. ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project And Anr WITH INTERIM APPLICATION STAMP NO. 28069 OF 2022 In First Appeal STAMP NO. 32622 OF 2018 Gangubai Barku Kale And Ors. ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project, Nashik And Anr.

WITH CIVIL APPLICATION IN FA NO. 2058 OF 2019 In First Appeal STAMP NO. 31817 OF 2018 The Executive Engineer, Nandurmadhameshwar....APPLICANT Project V/S Mr. Sudhakar Popat Gade Died Through His ....RESPONDENT Legal Heirs 1.1 Smt. Gayatri Sudhakar Gade And Ors.

WITH CIVIL APPLICATION IN FA NO. 1842 OF 2019 In First Appeal STAMP NO. 32628 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Dashrath Umaji Gade Died Thr. Lrs. 1.1 Bijalabai Dashrath Gade And Ors.

WITH CIVIL APPLICATION IN FA NO. 2108 OF 2019 In First Appeal STAMP NO. 32673 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Ratan Namdeo Sonawane And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1815 OF 2019 In First Appeal STAMP NO. 32655 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Trambak Karbhari Tambe And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1846 OF 2019 In First Appeal STAMP NO. 32625 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Dhondiram Tabaji Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1848 OF 2019 In ....RESPONDENT First Appeal STAMP NO. 32631 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Balkrishna Popat Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1856 OF 2019 In First Appeal STAMP NO. 32619 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Balasaheb Baburao Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1836 OF 2019 In First Appeal STAMP NO. 32658 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Sanjiv Trambak Vaghchaure / Tambe And....RESPONDENT Anr.

WITH CIVIL APPLICATION IN FA NO. 1838 OF 2019 In First Appeal STAMP NO. 32643 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Shivaji Shrihari Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1840 OF 2019 In First Appeal STAMP NO. 32676 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Saraswati Baburao Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1675 OF 2019 In First Appeal STAMP NO. 32634 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Kusumbai Gangadhar Shinde And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1680 OF 2019 In First Appeal STAMP NO. 32616 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Dhondi Ganapati Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1844 OF 2019 In First Appeal STAMP NO. 32640 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Bhaskar Damu Kale And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1640 OF 2019 In First Appeal STAMP NO. 32652 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Subhash Tabaji Gade And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1676 OF 2019 In First Appeal STAMP NO. 32634 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Kusumbai Gangadhar Shinde And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1681 OF 2019 In First Appeal STAMP NO. 32616 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Dhondi Ganapati Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1816 OF 2019 In First Appeal STAMP NO. 32655 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Trambak Karbhari Tambe And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1818 OF 2019 In First Appeal STAMP NO. 32622 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Gangubai Barku Kale And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1820 OF 2019 In First Appeal STAMP NO. 32661 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Sudam Shrihari Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1837 OF 2019 In First Appeal STAMP NO. 32658 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Sanjiv Trambak Vaghchaure / Tambe And....RESPONDENT Anr.

WITH CIVIL APPLICATION IN FA NO. 1843 OF 2019 In First Appeal STAMP NO. 32628 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Dashrath Umaji Gade Died Thr. Lrs. 1.1 ....RESPONDENT Bijalabai Dashrath Gade And Ors.

WITH CIVIL APPLICATION IN FA NO. 1845 OF 2019 In First Appeal STAMP NO. 32640 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Bhaskar Damu Kale And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1847 OF 2019 In First Appeal STAMP NO. 32625 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Dhondiram Tabaji Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1849 OF 2019 In First Appeal STAMP NO. 32631 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Balkrishna Popat Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1851 OF 2019 In First

Appeal STAMP NO. 32646 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Popat Gangadhar Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1855 OF 2019 In First Appeal STAMP NO. 32649 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Kisanbai Yadhav Khute And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1857 OF 2019 In First Appeal STAMP NO. 32619 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Balasaheb Baburao Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 2059 OF 2019 In First Appeal STAMP NO. 31817 OF 2018 The Executive Engineer, Nandurmadhameshwar....APPLICANT Project V/S Mr. Sudhakar Popat Gade Died Through His ....RESPONDENT Legal Heirs 1.1 Smt. Gayatri Sudhakar Gade And Ors.

WITH CIVIL APPLICATION IN FA NO. 2109 OF 2019 In First Appeal STAMP NO. 32673 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Ratan Namdeo Sonawane And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1839 OF 2019 In First Appeal STAMP NO. 32643 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Shivaji Shrihari Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1835 OF 2019 In First Appeal STAMP NO. 32664 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Popat Gangadhar Gade Died Thr. Lrs. ....RESPONDENT Yamunabai Popat Gade And Ors.

WITH CIVIL APPLICATION IN FA NO. 1841 OF 2019 In First Appeal STAMP NO. 32676 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Saraswati Baburao Gade And Anr. ....RESPONDENT WITH INTERIM APPLICATION STAMP NO. 28861 OF 2022 In First Appeal STAMP NO. 32664 OF 2018 Mr. Popat Gangadhar Gade Died Thr. Lrs. ....PETITIONER Yamunabai Popat Gade And Ors.

V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project WITH INTERIM APPLICATION NO. 30130 OF 2022 In First Appeal STAMP NO. 32637 OF 2018 Gangadhar Tukaram Gade(deceased)thr.lrs. ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project And Anr WITH INTERIM APPLICATION NO. 30129 OF 2022 In First Appeal STAMP NO. 32628 OF 2018 Dashrath Umaji Gade(deceased)thr.lrs. ....PETITIONER V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project And Anr WITH INTERIM APPLICATION NO. 30128 OF 2022 In First Appeal STAMP NO. 32655 OF 2018 Trambak Karbhari Vaghchaure (deceased) Thr. ....PETITIONER Lrs. Smt. Sindhubai T Vaghchaure And Ors.

V/S The Executive Engineer, Nandur Madhameshwar ....RESPONDENT Project And Anr.

WITH CIVIL APPLICATION IN FA NO. 1850 OF 2019 In First Appeal STAMP NO. 32646 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Popat Gangadhar Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1854 OF 2019 In First Appeal STAMP NO. 32649 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Kisanbai Yadhav Khute And Anr.

....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1819 OF 2019 In First Appeal STAMP NO. 32661 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Sudam Shrihari Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1813 OF 2019 In First Appeal STAMP NO. 32667 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Deoram Popat Gade And Anr. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1834 OF 2019 In First Appeal STAMP NO. 32664 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Popat Gangadhar Gade Died Thr. Lrs. ....RESPONDENT Yamunabai Popat Gade And Ors.

WITH CIVIL APPLICATION IN FA NO. 1817 OF 2019 In First Appeal STAMP NO. 32622 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Smt. Gangubai Barku Kale And Ors. ....RESPONDENT WITH CIVIL APPLICATION IN FA NO. 1814 OF 2019 In First Appeal STAMP NO. 32667 OF 2018 The Executive Engineer, Nandur Madhameshwar....APPLICANT Project V/S Mr. Deoram Popat Gade And Anr. ....RESPONDENT Ms. Chaitrali A Deshmukh for Applicant Mr. A. R. Patil AGP for State CORAM : HON'BLE SHRI JUSTICE R. I. CHAGLA J DATE : 13th December, 2022 P.C. :

S.O to 19/12/2022.

(FOR REGISTRAR JUDICIAL - I)